



OLDS COLLEGE
OF AGRICULTURE & TECHNOLOGY

REQUEST FOR PROPOSAL

RFP 197 - 2027

Learning Management System (LMS) ***Platform & Support***

Date Issued: August 11, 2026

Question Closing Time: September 2, 2026 before 2:00:00 PM MT

Closing Date and Time: September 9, 2026 before 2:00:00 PM MT

TABLE OF CONTENTS

TABLE OF CONTENTS	2
SECTION A – INTRODUCTION	3
1. Invitation for Proposal	5
2. Definition of Terms	5
3. General Requirements	6
3.1 Background Information	6
3.2 Objectives	7
3.3 Contract Start Date and Contract Renewals	8
4. Process and Rules Regarding Proposals	8
4.1 Submission of Proposal and Acceptance Period	8
4.2 Trade Agreements	9
4.3 Proposal Acceptance/Rejection	9
4.4 Limitation of Legal Rights and Limitation of Liability	10
4.5 Questions	10
4.6 Addenda	10
4.8 Amendments to Proposals	11
4.9 Proposal Opening	11
4.11 Clarifications	11
4.12 Authority	11
4.14 Format of Proposal	12
4.15 Compliance with Terms and Conditions	13
4.16 Quantity Requirements	13
4.17 Pricing	13
5. Information for Proponents	13
5.1 Insurance	13
5.2 Workers Compensation Board	14
6. Timeline	14
7. Proposal Evaluation	14
7.1 Mandatory Requirements	14
7.2 Evaluation Criteria	14
7.3 Short List	15
7.4 Execution of Agreement	15
SECTION B – SPECIFIC REQUIREMENTS	16
8. Capability and Resources	16
SECTION C– PROPONENT'S RESPONSE DOCUMENTS	18
9. Certification	18
SECTION D – SCOPE OF WORK & PRICING SCHEDULE - SPECIFICATIONS	19

SCOPE OF WORK	19
PRICING SCHEDULE	22
SECTION E – OLDS COLLEGE SERVICES AGREEMENT	23
OLD COLLEGE SERVICES AGREEMENT	24

SECTION A – INTRODUCTION

Purpose

This Request for Proposal (RFP) is intended to identify interested suppliers and allow them the opportunity to competitively submit a Proposal to this RFP, as a Proponent.

Olds College of Agriculture and Technology (Olds College) is seeking to enhance its existing learning management system (LMS) capabilities; either through the enhancement of third-party support for its existing Moodle LMS, or via a new LMS system, to support an improved student learning experience, increased instructor support, and the ability to expand institutional access to distance learning markets.

Values Statement

At Olds College we value:

- Empowerment of learners
- Rural community development
- Teamwork
- Continuous improvement in all College operations

Mission Statement

Alberta's agriculture community has the talent, knowledge and thought leadership to lead globally. This result will be produced in a manner that demonstrates stewardship and sustainability.

Social Purpose

The Social Purpose of Olds College is “Transforming agriculture for a better world”.

Everything we do at Olds College is done to advance all aspects of the agriculture industry. By transforming the agriculture industry, we will make the world a better place. All of our programs and actions align to our social purpose. It is the why behind everything we do.

Strategic Plan - Strategic Drivers

In 2018, Olds College launched a strategic plan: Growing 2025. The plan was developed and built on the college's social purpose to “Transform agriculture for a better world,” and reaffirms that everything we do at Olds College is done to advance the agriculture industry, both here at home and throughout the globe.

For more information about [Growing 2025: the Olds College Strategic Plan](#)

About Olds College

"For more than 100 years Olds College has delivered hands-on training, innovative learning programs, and graduates who are in-demand and have the skills and tools needed to succeed. Olds College continues to embrace this model of practical, hands-on technical education where students learn by doing. Virtually every program has some element of practical experience, which helps prepare our students for successful careers in the real world.

Today, Olds College is known for high-tech, hands-on agriculture education and innovative applied research that lays the foundation for solving real-world problems in farming, food and land. Olds College

Centre of Innovation and Smart Farm are accelerating the development and adoption of technologies and practices that result in improved productivity, profitability and sustainability of the agriculture and agri-food industry through industry-driven applied research.

Olds College has become a leader in agriculture technology over the past five years. This is evident by the success of our Smart Farm, incredible growth of our applied research program, and the addition of new credentials in agriculture technology.

For more information about Olds College please visit www.olds.college.ca/about-us/index.html

1. Invitation for Proposal

Olds College invites your firm to submit a Proposal for the provision of **Learning Management System (LMS) Platform & Support**, as set out in this Request for Proposal.

Request for Proposal No.:	197 - 2027
Description:	<i>Learning Management System (LMS) Platform & Support</i>
Date Issued:	August 11, 2026
Question Closing Time:	September 2, 2026 before 2:00:00 PM MT
Closing Date and Time:	September 9, 2026 before 2:00:00 PM MT

2. Definition of Terms

Whenever used in this RFP, or any other forms which might be part of a Proposal or of the Agreement document, the following words shall be deemed to have meanings as indicated below:

- 2.1. **“ATIA”** means the Access to Information Act
- 2.2. **“Agreement”** means a contract(s) that may be entered into by Olds College with a successful Proponent(s) for the **Learning Management System (LMS) Platform & Support** described in this RFP;
- 2.3. **“Closing Date”** means the day, specified above, on which the RFP will close;
- 2.4. **“Closing Time”** means the time, specified above, at which the RFP will close;
- 2.5. **“Contractor”** and **“Supplier”** means a **Learning Management System (LMS) Platform & Support** provider to whom an Agreement is awarded by Olds College for any or all of the **Learning Management System (LMS) Platform & Support** described in the RFP;
- 2.6. **“Control”** means that Olds College has the authority to manage the Record as per the POPA and ATIA Acts, including its creation, use, disclosure and disposal;
- 2.7. **“Learning Management System (LMS) Platform & Support”** or **“Project”**, **“Solution”** means the

goods and services to be provided by the Contractor under the Agreement, as more fully described in Section D - Scope of Work and Pricing Schedule;

- 2.8. **“Custody”** means that a party has physical possession of the Record as per the POPA and ATIA Acts;
- 2.9. **“Evaluation Committee”** means the evaluation committee, comprised of representatives selected by Olds College, in its sole discretion, to evaluate Proposals;
- 2.10. **“Olds College”** means The Board of Governors of Olds College;
- 2.11. **“Owner”** means Olds College;
- 2.12. **“POPA”** means the *Protection of Privacy Act*
- 2.13. **“Proponent”** means a person or firm submitting a Proposal to Olds College pursuant to this RFP;
- 2.14. **“Proposal”** means the offer of a Proponent to provide the **Learning Management System (LMS) Platform & Support**, as requested by this RFP;
- 2.15. **“Record”** means information in any form, including proposals, reports, documents, letters, meeting minutes and all other correspondence, papers and any other information that is written, photographed, recorded or stored in any manner, but does not include the software or any mechanism that processes such records;
- 2.16. **“RFP” or “Request for Proposal”** means this request for proposal including all forms included in the RFP; and

3. General Requirements

3.1 Background Information

The purpose and intent of this RFP is to solicit proposals from qualified vendors to enhance the College’s existing learning management system (LMS) capabilities; either through the enhancement of third-party support for its existing Moodle LMS, or via a new LMS system.

The College is planning to commence either the enhancement of its existing LMS, or begin the process of implementing a new LMS, by the 1st of February, 2027.

Olds College is home to over 3400 students across 40+ programs that occur throughout the year.

The College currently utilizes Moodle LMS, an open-source learning management system providing educators and institutions with a customizable platform to create online courses, track student progress, and manage collaborative learning environments.

Core Features Include

- Course Creation: Build structured learning paths using interactive tools, text pages, multimedia, and lesson modules.
- Assessments & Grading: Administer graded and ungraded quizzes, track assignments, and utilize integrated grade books with custom rubrics.
- Collaboration & Engagement: Foster collaboration, knowledge sharing, and engagement through interactive tools that facilitate multiple means of student engagement and expression, such as discussion forms, wikis, workshops, and gamification elements
- Accessibility & Privacy: Meet WCAG standards with built-in accessibility checks, secure data controls, and compliance tools.

The College leverages a third-party firm to support the current open-source LMS; along with a small team of in-house LMS professionals to provide ongoing support to instructors and students.

Note, the College utilizes Ellucian Banner as its Student Information System (SIS). Any proposed LMS enhancement or new LMS option would need to integrate with this SIS.

3.2 Objectives

Olds College is seeking to achieve the following objectives through any Agreement that may result from this RFP, and as detailed further in Section D: Scope of Work and Pricing Schedule, which includes the specifics of this Project, including:

Enhancing the College's existing learning management system (LMS) capabilities; either through the enhancement of third-party support for its existing Moodle LMS, or via a new LMS system, to support:

Student Experience

- Supporting enhanced student access to learning, including online options
- Ensuring a consistent, high-quality experience across all online programs
- Creating flexible online learning pathways that foster social presence and student perseverance.
- Providing expanded access to new technology that facilitates learning - such as mobile device access & artificial intelligence functionality

Instructor Experience

- Supporting instructors in delivering quality instruction
- Streamlining administrative workflows to expand instructor time for increased student engagement and course development
- Supporting timely student assessment and feedback practices
- Providing technology tools that support proactive student interventions
- Increased integration of course development and media tools

Market Expansion

- Allowing for broader dissemination of College programming to distance markets; including supporting Campus Alberta Central and populations with limited access to the Olds Campus

Institutional Sustainability

- Acting as an enrolment and revenue generation tool for both credit and non-credit programming pathways to support institutional sustainability

3.3 Contract Start Date and Contract Renewals

- 3.3.1 Olds College anticipates the start date for the contract resulting from this RFP on **February 1st, 2027**.
- 3.3.2 Olds College will enter a contract for services for five (5) years. There will also be the opportunity to renew the contract for two (2) separate three (3) years renewals, based solely on the College's discretion.
- 3.3.3 The total contract term, if optional renewals are activated, may be up to a maximum of a eleven (11) years period.

4. Process and Rules Regarding Proposals

4.1 Submission of Proposal and Acceptance Period

Proponents must submit an electronic copy by email. Submissions must be clearly marked with the Proponent's name and address, the Proposal name and number and the Closing Date and Time.

Proposals will NOT be accepted by facsimile transmission or in-person hard copy submissions.

Proposals shall be addressed to:

Olds College
Purchasing Department
4500 - 50 Street
Olds, AB T4H 1R6
submissions@oldscollege.ca

All Proposals must be submitted no later than the Closing Date and Time. The official time of receipt of Proposals shall be as determined by the time recorder clock used to time and date stamp Proposals upon submission to Olds College. Olds College will not accept Proposals received after the Closing Date and Time.

Olds College reserves the right in its sole discretion to extend the Closing Date and Time and the acceptance period for any reasonable length of time. Notwithstanding this right and any timelines as may be identified herein, all Proposals shall be open for acceptance by Olds College for a period of not less than 90 days after the Closing Date and Time.

Alberta Purchasing Connection

Electronic copies of the RFP Documents may be obtained by Proponents from the Alberta Purchasing Connection (APC) website at: <http://www.purchasingconnection.ca/>. The electronic version of the

procurement documents found on the Alberta Purchasing Connection website is the only official version of the RFP Documents.

Alberta Purchasing Connection is the only third party source sanctioned by the Olds College for the electronic posting of documents relating to this RFP. Any addenda issued pursuant to this procurement process will be posted to the Alberta Purchasing Connection website.

Olds College is not responsible for any failure of the Alberta Purchasing Connection website, though Proponents are encouraged to notify Olds College of any website issues.

4.2 Trade Agreements

Procurements falling within the scope of the *New West Partnership Trade Agreement* and the *Canadian Free Trade Agreement* are subject to the applicable provisions of these Agreements, but the rights and obligations of the parties are governed by the specific terms of each particular procurement.

4.3 Proposal Acceptance/Rejection

This RFP is a request for proposal only and is not an offer to buy or lease any equipment, property or services. Neither the provision of this RFP to a Proponent nor acceptance or receipt of a Proposal will imply any obligation or commitment on the part of Olds College to enter into an Agreement or contract of any kind in respect of any or all contents of this RFP. Olds College may cancel this invitation at any time, in whole or in part, for any reason whatsoever and without incurring any liability to anyone who has submitted a Proposal or intends to submit a Proposal.

Olds College is not obligated in any way to pay for costs of any kind or nature whatever, that may be incurred by a Proponent or any associated third parties, in the preparation of Proposals, making presentations, demonstrations or samples before or after the Closing Date and Time. All such associated costs shall be the sole responsibility of the Proponent. All Proposals and supporting documentation will be retained by and will become the property of Olds College, subject to claims of confidentiality in the Proposal and support documentation. In addition to all other rights reserved by Olds College in this RFP, Olds College has the right, in its sole and unfettered discretion, to:

- Assess the relative merit and advantages of each of the Proposals, based on the scoring set out in this RFP,
- Reject or accept any Proposal, including the right to accept non-compliant Proposals or to reject all Proposals,
- Waive any irregularities or informalities contained in any Proposal,
- Accept the withdrawal of any Proposal as permitted under this RFP,
- Decide not to accept any proposal from a Proponent(s) or not to enter into any Agreement with any Proponent(s),
- Decide to negotiate with any Proponent(s) or to enter into an Agreement with any Proponent(s), irrespective of whether the Proposal submitted by the Proponent(s) is incomplete, irregular, conditional, non-compliant or fails to provide all the information required in this RFP, and
- During the negotiation phase after the RFP Closing Date and Time, negotiate terms and conditions with any Proponent that may be different than those contained within this RFP or the Proposal of the Proponent, without being required to offer such terms and conditions to the

other Proponents.

4.4 Limitation of Legal Rights and Limitation of Liability

By submitting a Proposal, each Proponent agrees that, in the event that a court should find that Olds College is liable for anything arising in connection with this RFP, a Proponent providing a Proposal, the selection of a successful Proponent, any negotiations following the provision of a Proposal, or any representation made by Olds College; the Proponent shall not be entitled to claim for damages or other legal relief whatsoever, and in particular, the Proponent waives any claim for lost profits or any other claim, in the event that no Agreement is entered into between a Proponent and Olds College.

4.5 Questions

It is the sole responsibility of a Proponent to clarify the interpretation of any items in this RFP. Proponents may submit questions to Olds College with regard to this RFP via electronic mail only, to the contact information noted below, at any time up to the deadline date for questions noted in Section 1. Questions received after that deadline will not be answered by Olds College.

Answers provided to any substantive questions received will be issued as an addendum in accordance with Section 4.6. Olds College reserves the right at its sole discretion to not answer non-substantive questions. All questions shall be directed to:

Olds College
4500 50 Street
Olds, AB
Purchasing Department
purchasing@oldscollege.ca

Olds College will not be bound by, and the Proponent agrees not to rely upon, any information given or statements made by persons other than the above authorized Olds College representative.

4.6 Addenda

Olds College reserves the right to issue addenda with regard to this RFP for any reason including without limitation, to amend or revise the RFP, to respond to questions, to disclose changes in the schedule, to extend the Closing Date and Time, to modify the Proposal format or requirements, or any other matter. Answers to all substantive questions will be provided in the form of written addenda. Addenda to this RFP shall be deemed part of this RFP.

All addenda related to this RFP will be issued by Olds College by the deadline indicated in Section 1 and will be posted electronically to the Alberta Purchasing Connection site where the RFP was originally posted.

Proponents shall be solely responsible to ascertain that they have received all addenda prior to submitting their Proposal. Olds College is not responsible in any way to ensure the completeness of information received by Proponents.

4.7 Withdrawal of Proposal

Proponents may withdraw their Proposals, by notice via email only, at any time prior to the Closing Date and Time. After the Closing Date and Time, Proposals remain open for acceptance in accordance with

the acceptance period stated above in Section 4.1.

Negligence or errors on the part of the Proponent in preparing the Proposal confers no right of withdrawal on the Proponent in respect of the Proposal.

4.8 Amendments to Proposals

Proponents may modify their Proposals at any time up to the Closing Date and Time, by written amendments submitted to the email address noted in Section 4.1. Amendments shall clearly indicate the name of the Proponent, the date of Proposal, and reference the RFP number. Amendments to Proposals will not be accepted after the Closing Date and Time.

4.9 Proposal Opening

All Proposals received before the Closing Date and Time will be opened by Olds College only. Any Proposals submitted after the Closing Date and Time, will not be opened or accepted.

Proponents will not be scored or short listed until such time as the Selection Committee has had an opportunity to examine and evaluate all compliant Proposals.

4.10 Selection Committee

Upon receipt of Proposals and after the Closing Date and Time, the Selection Committee will review each compliant Proposal, ensure each Proponent's compliance with the terms and conditions of this RFP, and score each compliant Proposal based on the evaluation criteria within this RFP document.

Proponents will be evaluated by the Selection Committee based on the quality and completeness of information given in the Proposal.

The determination of the members of the Selection Committee is at the sole discretion of Olds College and the identity of persons forming part of the selection committee will not be made known to the Proponents.

4.11 Clarifications

Olds College reserves the right in its sole discretion to request clarification from a Proponent after the Closing Date and Time to seek further information from the Proponent without any obligation to notify or seek further information from any or all other Proponents. Olds College also reserves the right to verify any and all information provided by the Proponents in their Proposals through third party investigations or any other means without notice to the Proponent.

4.12 Authority

Nothing in this RFP shall be construed as authority for any selected Proponent(s) to make commitments which shall bind Olds College to otherwise act on behalf of Olds College, except as Olds College may expressly authorize in writing.

4.13 Information Disclosure

Olds College is a public body and is subject to the privacy and disclosure provisions of the *Protection of Privacy Act (POPA)* and *Access to Information Act (ATIA)*. All information provided by Olds College to the Proponents and all information provided by the Proponents to Olds College in Proposals will be subject to the *POPA* and *ATIA* privacy and disclosure provisions.

Proponents should be aware that all Records collected, created, maintained or prepared in the performance of services under an Agreement arising from this RFP will be subject to the access and privacy provisions of the *POPA and ATIA*.

While the *ATIA* allows persons a right to access Records in Olds College Custody or Control, it also prohibits Olds College from disclosing personal or business information of third parties where disclosure would be harmful to that third parties business interests, or would be an unreasonable invasion of that third parties personal privacy as defined in sections 19 and 20 of the *ATIA*. Proponents are encouraged to identify what portions of their Proposals are confidential and what harm could reasonably be expected from its disclosure.

The purpose of collecting personal information required to be provided in Proposals for this RFP, is to enable Olds College to ensure the accuracy and reliability of the Proposals, and to evaluate the Proposals. This information is required by Olds College to carry out its operations.

It is recommended that Proponents advise persons whose personal information is being provided in Proposals to Olds College for this RFP, that the privacy of their personal information as well as its possible disclosure by Olds College to third parties, upon request, will be governed by the *POPA and ATIA*.

All Proponents shall make themselves aware of the requirements of the *POPA and ATIA* since the successful Proponent will be required to meet the requirements of the *POPA* for all personal information that the Proponent has access to, collects, uses or destroys as a consequence of carrying out its obligations in respect of the provision of the **Learning Management System (LMS) Platform & Support**.

4.14 Format of Proposal

Proposals should be prepared concisely (**edit as applicable:** in 30 pages or less) and in the order below.

All Proposals should have every page numbered in sequential order.

	Description
1	Proposal Certification Document (Section C) Acceptance of Service Agreement Terms and Conditions (Section C - Item 9)
2	Company Experience
3	Staff/Resources Experience
4	Proposed Project Solution and Approach
5	Pricing
6	The Proponent should also provide: ● References (Item 8.6)

The Proposal format should also provide a clear description of the Proponent's capability to satisfy the

requirements of this RFP as identified in:

- a) Section 7 “Proposal Evaluation”, section 7.1 Mandatory Requirements,
- b) Section B - Specific Requirements, and
- c) Section D - Scope of Work and Pricing Schedule.

4.15 Compliance with Terms and Conditions

Proponents shall carefully read all documentation forming part of the RFP and submit Proposals complying with all terms and conditions contained in the RFP. Proponents shall make all investigations necessary to properly understand and provide for all conditions which may affect the supply of the **Learning Management System (LMS) Platform & Support** described.

Unless the Proponent has indicated in their Proposal specific exceptions of non-compliance with any of the conditions contained in the RFP, the submission of a Proposal by a Proponent shall be construed by Olds College to mean that the Proponent agrees to abide by and carry out all terms and conditions set forth in the RFP documents.

Submission of a Proposal to this RFP, shall be construed as acceptance of all the terms and conditions of the attached Agreement.

4.16 Quantity Requirements

Any quantities or estimated requirements provided under this RFP are estimates only to be used by Olds College for the sole purpose of evaluating Proposals. Olds College does not warrant, represent or guarantee that these estimated quantities will constitute the actual quantity(ies) for the **Learning Management System (LMS) Platform & Support** to be received. Proposals should address variations in quantity and the resulting change in quoted prices, if any.

4.17 Pricing

Proponents shall submit pricing in their Proposal, as requested in Schedule D - Scope of Work and Pricing Schedule, as follows:

- in Canadian dollars, and
- Prices must remain fixed and applicable to all goods and services, as detailed within this RFP, throughout the entire term of the 5 year agreement.

5. Information for Proponents

5.1 Insurance

It is an Olds College requirement that for any Agreement entered into as a result of this RFP the Contractor shall, at its own expense and without limiting its obligations, provide and maintain policies of insurance as outlined below:

- Comprehensive General Liability insurance in an amount of not less than two million dollars (\$2,000,000) inclusive per occurrence against third party claims for bodily injury, personal injury, and property damage (including loss of use thereof). Such insurance shall cover all operations of the insured and include, but not being limited to: products and completed operations liability, blanket written contractual liability, owners and contractors protective liability, owners and employees as additional insured, and

- Insurance on property of others on an “all risks” basis, including theft, and in an amount sufficient to cover such property in the Contractor’s care, custody and control.

5.2 Workers Compensation Board

Proponents are advised that it is an Olds College requirement that for any Agreement entered into as a result of this RFP, upon request, the Contractor shall provide a “Letter of Clearance” from the Workers’ Compensation Board indicating its account is in good standing.

6. Timeline

Event	Date
Issue RFP	August 11, 2026
Deadline for Questions	September 2, 2026 at 2:00:00 PM MT
Closing Date and Time	September 9, 2026 at 2:00:00 PM MT
RFP Evaluations & product demos	September 10 - November 15, 2026
Vendor Interviews	September 15 - November 15, 2026 (or TBD)
RFP Award	November 30, 2026
Agreement Start Date	February 1, 2027 (or TBD)

The above timeline is subject to change at the sole discretion of Olds College. In the event a change is made to the timeline, Proponents will be informed by written Addenda posted on APC. After the closing date has been posted on APC, all qualified proponents with successful submissions will be notified directly by the email address provided in their submission..

7. Proposal Evaluation

7.1 Mandatory Requirements

The following are mandatory requirements. **Proposals not clearly meeting these mandatory requirements will be considered non-compliant and will not be evaluated, and therefore will be rejected from the evaluation process.**

7.1.1 Certification

Certification document - Section C Item 9 “Proposal Certification Document” must be completed in full and signed by the Proponent.

Any proposals not including this information will not be considered for evaluation.

7.2 Evaluation Criteria

Only proposals meeting the mandatory requirement in section 7.1., will be further evaluated and assessed using the following criteria and point rated system.

The most important criteria are indicated by the highest weighting indicated on the following chart. The

company's performance measures, quality standards and other criteria used as measurements for evaluation of services including:

	Scored (Desirable) Criteria	Maximum Points
A.	Company Experience	15
B.	Staff/Resource Experience	5
C.	Proposed Solution and Approach	40
D.	Pricing	40
	Total Cost of Proposal (see Section D - Pricing Schedule for breakdown)	
E.	Reference Checks and Interview	
	Outcome of reference checks - satisfactory	yes/no
	Total Points Available	100

7.3 Short List

Olds College may establish a shortlist of Proponents upon completion of an initial round of evaluations. Olds College reserves the right to request presentations relating to a Proposal from short-listed Proponents as may be required.

7.4 Execution of Agreement

The successful Proponent(s) will be required to execute the Agreement attached as Section E of this RFP or Olds College will consider any successful Proponent's standard Customer Agreement, where such Agreement will incorporate the terms and conditions of this RFP and the successful Proposal.

Once any written Agreement has been entered into as a result of this RFP process, the terms and conditions of this RFP and the successful Proposal will supersede the terms and conditions of this RFP and the successful Proposal.

SECTION B – SPECIFIC REQUIREMENTS

In order for its Proposal to be considered further in the evaluation process the Proponent must respond, in detail, to each of the following requirements, as set out specifically in Section D: Scope of Work and Pricing Schedule.

In the event the Proponent has a unique capability, credential or service that is not expressly stated in this RFP, Proponents are encouraged to attach any appropriate supporting material.

8. Capability and Resources

8.1 Company Experience (15 Points)

Proponents should provide the following information in their Proposals:

- a) a brief company history, including the length of time the company has been in business and the number of years providing the goods and services requested in this RFP;
- b) a copy of the Proponent's organizational structure, reporting structure, number of employees, etc.;
- c) an outline of the Proponent's experience in providing the goods and services set out in this RFP, including *providing LMS systems and support; or support for the existing Moodle LMS (if applicable)*
- d) the Proponent's experience working with post-secondary institutions previously, including with institutions that utilize Ellucian Banner

8.2 Staff/Resource Experience (5 points)

Proponents should provide the following information in their Proposals:

- a) Staff and resource experience and qualifications,
- b) Proposed subcontracted resources - experience and qualifications (if applicable)
- c) A staffing model that designates personnel assigned to the project, including:
 - i. resumes for any staff members proposed to work on the Project, and
 - ii. identification of any work to be subcontracted.

8.3 Proposed Solution and Approach (40 points)

Proponents should provide the following information in their Proposals:

- a) how the Proponent's proposed solution uniquely fits Olds College' requirements as set out in this RFP and as set out specifically in Section D: Scope of Work and Pricing Schedule.
 - 1) Modules and features available
 - 2) Ability to develop and manage content
 - 3) Assessment capabilities and management
 - 4) Communication & engagement support and features
 - 5) System accessibility & user experience
 - 6) Mobile access & functionality
 - 7) Capabilities of artificial intelligence tools
 - 8) Data Analytics
 - 9) Integrations
 - 10) Security provisions
 - 11) Proposed implementation plan, including data migration

12) Ongoing customer support model

- b) the proposed methodology the Proponent recommends to address the Project, including providing all the goods and services requested in Section D: Scope of Work and Pricing Schedule, of this RFP,
- c) a work plan and schedule which includes how a Proponent proposes to successfully complete the project by any indicated deadline, including milestones and key dates and the Proponent's plan for any possible supply chain delays,
- d) any other relevant information to providing the goods and services set out in this RFP, and/or additional value-added goods or services proposed.
 - Ellucian Banner integration
 - other typical, common post-secondary software that your solution can integrate with.

8.4 Pricing (40 points)

Proponents should provide the following information in their Proposals:

- a) comprehensive project pricing, for all goods and services they propose to supply as a solution, under this RFP as attached in Section D: Scope of Work and Pricing Schedule.

The following information should be provided, but will not be scored:

8.5 Acceptance of Service Agreement Terms and Conditions

Proponents should provide the following information in their Proposals:

- a) Explicit acceptance of all contractual terms and conditions in the attached Service Agreement. (This is set out in the "Proposal Certification Document" in Section C for your convenience.)

8.6 References

Proponents should provide three references, where their company has provided the goods and services similar to those outlined in this RFP, including:

- name and title;
- name of company;
- phone number and email address;
- types of goods and services provided; and
- duration and value of agreement.

Olds College reserves the right to contact references without further approval from the Proponent.

References must be satisfactory for proposals to be considered compliant, but will not be scored.

SECTION C– PROPONENT'S RESPONSE DOCUMENTS

9. Certification

Failure to complete and sign this form means Olds College will reject your Proposal.

Proposal Certification Document

_____ of _____
(Company Name) (Business Address)

The undersigned have reviewed this RFP, 197-2027 **Learning Management System (LMS) Platform & Support**, including all Addenda and examined all conditions affecting the provision of the goods and services.

We are satisfied that we fully understand the intent of this RFP and declare that:

- (i) we accept all terms and conditions set out in the RFP;
- (ii) we accept all terms and conditions set out in the Agreement attached to the RFP, to govern a potential Agreement with Olds College resulting from this Proposal;
- (ii) we have access to adequate personnel, equipment, facilities and resources to fulfill the requirements of the RFP; and
- (iii) the content of our Proposal is true and accurate.

This Company hereby offers to Olds College the goods and services as detailed in our Proposal in accordance with the terms and conditions set out in this RFP, 197-2027 **Learning Management System (LMS) Platform & Support**.

Signed on: _____, 20____

Company Name: _____

Signature of Authorized Company Representative: _____

Name and Title: _____
(Please Print or Type)

Phone Number: _____

Email Address: _____

SECTION D – SCOPE OF WORK & PRICING SCHEDULE - SPECIFICATIONS

SCOPE OF WORK

Detailed LMS System Requirements	
Functional Requirements - Student Experience and Quality Instruction	
#1	Development & Management of Learning Content - Contains a course organizational structure and ability to manage courses (e.g. templates) - Ability to copy course templates and share internally - Ability to copy course content from one course to another - Ability to develop course learning materials in the system - Access to a repository of learning documents and tools - Authoring tools for developing content within the LMS - presentations, videos, discussion boards, etc. - Ability to easily link media in courses - Ability to incorporate existing content into the system - Supports integration and use of Google Drive and Documents - Ensures calendar functionality (including ease of integration with various external calendars) for individual students' comprehensive activities and milestones - Supports integration of external learning content (eg. digital textbooks such as Vital Source, McGraw-Hill) - Directly supports H5P
#2	Assessment - Ability to develop and manage gradebooks in an efficient manner - Weighted grading, outcome-based rubrics, etc. - Student access to grade information - Access to a variety of assessment templates and tools - Ability to build various types of quiz questions to measure knowledge and skills in various ways, including interactive questions types. - Ability to develop assessment tools - Ability for students to submit work in multiple formats via the system - E.g. Written documents, videos, pictures - Ability for instructors to provide timely formative and summative feedback

#3	Engagement & Communication - Tools that support collaboration, knowledge sharing, and engagement while protecting privacy and security - Integrated ability to facilitate communication between instructors and students and between students - Emails, discussion boards, peer-feedback loops, and virtual classrooms (preference for Google Meet, inbuilt virtual classroom), etc. - Learning environment that empowers student growth and perseverance. - Ability to enhance and streamline instructor/student engagement with multiple means of student expression and multiple means of accessing information, - Tools that empower students for appropriate management of attention and time
#4	Artificial Intelligence - Incorporation of artificial intelligence (AI) tools that support student experience, instructor efficiency and customer support, such as: - Utilizing AI to individualize content or experiences for students - Ability to leverage AI agents to provide communication prompts within courses - Leveraging AI to provide timely customer support 24 hours a day - Generating analytics on students and courses to support student success - Ability to generate draft assessment and course content for instructor review
#5	Support for Multiple Delivery Modalities - Ability to support in-person, online and blended delivery learning approaches synchronously and asynchronously - Providing course content in a manner which reflects and supports the specific delivery modality - Features which facilitate different course and program delivery options while supporting student engagement
#6	Academic Integrity - Incorporates or supports integration of tools that support academic integrity - Proctoring and/ or AI evaluation tools that support fairness, accountability, security, transparency, data privacy and relevance
Technical Requirements	
#1	Accessibility System that prioritizes ease of use and straightforward navigation

	○ Streamlined menu system ○ Intuitive navigation ○ Ability to customize system menus and content for the institution ○ Meets the Web Content Accessibility Guidelines (WCAG)
#2	Mobile Learning ● Allowing learners to access courses at any time and from any location using their mobile devices ● Providing mobile access in a streamlined and simplified manner
#3	Integrations ● Ability to integrate with existing College systems ○ Ellucian Banner (state whether Ellucian ILP will be necessary, or whether there would be a custom developed integration methodology available as an alternative) ● Allowing for external integrations which will support student experience and system functionality ○ Ease of integration for external applications or other tools ● Automated course enrolment and permission provisioning for students and instructors ● Support for Application Programming Interface (APIs)
#4	Security ● Maintaining data security standards to safeguard sensitive learning materials and learner information ● Safeguards against data breaches ● Ability to adhere to Province of Alberta information privacy standards (POPA) ● Proponents must be able to provide a HECVAT cybersecurity & privacy assessment. ● SAML based Single Sign-On (SSO) integration ● State whether the platform supports “local” Multi-Factor Authentication (MFA) support or whether MFA is dependent on the above SSO integration
#5	Data Migration (as applicable) ● Ensuring data migration capabilities for importing and exporting content to ensure a seamless transition ○ Including the ability to migrate preexisting LMS data into the system in a streamlined manner
#6	Cloud-Based System ● Providing an LMS in a cloud-based, rather than on-premise, platform ● Preference will be given to a Canadian host location ● Describe your approach to server resourcing ensuring adequate scaling to deal with periods of heavy load (exam week), the approach you use to resolve slow system responsiveness

#7	Data Analytics - Providing robust data analytics on courses, programs and learners; including associated reporting features - Including enrollment trends, learner success metrics, etc. - Student online activity in a course/program easily available to Instructors in real time
#8	Customer Support - Ability for the institution to secure support for broader system issues - Provision of robust transitional training support to ensure our college support team consistently has access to responsive technical support
#9	Implementation - Providing robust implementation support for any system transition - Including transition of content, training, etc.

PRICING SCHEDULE

Proponents should provide pricing for all the goods and services, as well as any other additional costs related to the software that will be incurred with all the goods and services requested in this RFP, (as applicable).

- Olds College prefers that Proponents use this chart for description of their pricing.
- Any proposed pricing must include the following information at a minimum.

Quantity	Description	Unit Price	Amount
	Implementation Costs		
	One-Time Implementation or Enhancement costs list any one-time costs associated with training, data migration, and other implementation or enhancement costs		
	sub total		
	Ongoing LMS Licensing and/or Support Costs		
	Annual Software Subscription and/or Ongoing Support Costs Please list individual modules / options with separate pricing for each module/ option module 1		

	- module 2 - module 3 - module 4 - module 5		
	Years 1 to 5 - annual software subscription (list any other applicable costs)		
		sub total	
		GST 5%	
		TOTAL	

SECTION E – OLDS COLLEGE SERVICES AGREEMENT

Note: The attached Olds College Services Agreement is being provided for the Proponent's information and review.

The terms and conditions contained in this agreement, are in addition to those identified in all other sections of this RFP. **The successful Proponent, if any, will be required to execute this Agreement.**

OLD COLLEGE SERVICES AGREEMENT

This Agreement is made this _____ day of _____, 20____.

BETWEEN:

The Board of Governors of Olds College
(“Olds College”)

and

(the "Contractor")

THE PARTIES AGREE AS FOLLOWS:

Definitions

- a. **“Agreement”** means this Agreement inclusive of its attached Schedules,
- b. **“College Persons”** means a person on Olds College campus that the Contractor may encounter, whether Olds College staff, agents or students.
- c. **“Developed Product”** means all works, writings, creations, inventions, techniques, improvements, methods, software programs, designs and other original works, and all creations in the nature of intellectual property, including without limitation all other creations of a nature capable of protection under patent, trade mark or copyright legislation, developed or created by the Contractor in the performance of the Services, and any and all moral rights and copyright which may subsist or exist in the same and any and all drawing, specifications, source codes, algorithms, derivatives evidencing or comprising the same and all summaries, derivative and copies of the same, and all enhancements and versions of the same.
- d. **“Olds College”**, means a college duly established pursuant to the laws of the Province of Alberta.
- e. **“Sensitive Information”** means and includes all information of a confidential nature, whether in electronic, written or other form, including without limitation:

- a) student, supplier or employee records;
- b) security infrastructure of Olds College;
- c) source codes, software and other intellectual property owned by or licensed to Olds College;
- d) financial or other business records,
- e) third-party business confidences,
- f) information concerning planned policies or proposals involving Olds College;
- g) and any other information, including personal information, pertaining to any College Persons or Olds College's finances, operations or intellectual property.

v. "Services" means the goods and services described in the Section D - Scope of Work & Pricing Schedules attached to this Agreement, and which are to be supplied and provided by the Contractor.

Agreement to Provide Goods and Services

1. Throughout the Term of this Agreement, the Contractor agrees to perform, provide and supply to and for Olds College, those goods and services described in Schedule "A" (the "Services"), of the description, at the times and places and in accordance with the requirements and specifications set out in Schedule "A".

Term

2. Subject to earlier termination as set out in this Agreement, the term of this Agreement is ____ year(s) starting _____, 20__ and ending _____, 20__ .
 - a. In the event that this Agreement has been executed after the commencement of the said Term, the provisions of this Agreement shall be deemed retroactive to the start date in this section.

Renewal Term

3. Olds College shall, subject to section 4 (b), have the option to renew the said Term for two further terms of ____ years each ("Renewal Term(s)"), upon written notice to the Contractor served thirty (30) days prior to the expiry of each Term, for a total of ____ years.

4. Pricing/Fees

- a. Olds College agrees to pay the price of the fees for the Services as specified in Schedule "A".
 - i. Unless otherwise stated, all fees are exclusive of goods and services taxes.
 - ii. All fee pricing is inclusive of all other taxes and assessments, and inclusive of all third party charges, supplies, travel, transport, salaries, parts, fuel, permits, application fees and office expenses, and the Contractor shall be solely responsible for the payment of all these.
- b. In the event that the Term of this Agreement is renewed or deemed to be renewed under section 3, the pricing for the Services shall remain the same throughout the Renewal Term.
 - i. For a price change, the Contractor must within the first sixty (60) days of such Renewal Term give written notice to Olds College requesting an increase in pricing. If this happens, Olds College has an additional sixty (60) days within which to reject or accept such increased pricing.
 - ii. In the event that Olds College rejects such pricing, including failure to submit timely

notice, the Contractor shall have the option to at any time thereafter (unless the parties agree to other pricing) terminate this Agreement upon ninety (90) days' notice to Olds College.

- c. Olds College may use a set off against any monies owing to the Contractor, where the Contractor is in breach of this Agreement or where Olds College is otherwise entitled to claim indemnity or other compensation from the Contractor.

Quantities

5. Except to the extent otherwise stated in Schedule "A", Olds College has no obligation to order or retain any minimum quantity of goods or Services, and may obtain identical goods or services or both from other suppliers.

Billing & Payment

6. The Contractor shall only invoice once in each calendar month. Unless otherwise stipulated in Schedule "A", invoices are payable within thirty (30) days of receipt.
 - a. If the Services are defective or deficient, or if the Contractor has not complied with the terms and conditions of the Agreement for any other reason, Olds College may withhold payment, even for other Services, until such deficiencies have been rectified to the reasonable satisfaction of Olds College.
 - b. All billing shall contain a detailed and itemized description of the Services provided and the manner in which the invoiced fees and other charges have been calculated.
 - i. Where expenses are chargeable, invoices or other supporting evidence of such charges shall be included.
 - c. Upon Olds College request, the Contractor shall provide such further and better particulars concerning the Services. The Contractor shall not bill for time expended in billing accounts or in providing further or supporting information.
 - d. Olds College payment of any particular invoice is not an admission that the amount paid was properly owing. Such payment shall not constitute acceptance of the Services provided or the quality or sufficiency of them, or the amount charged for them. Olds College shall at all times remain free to question any account, seek repayment or make any other claim relating to payment, as it deems appropriate.

Authorized Personnel

7. In the course of providing the Services, the Contractor acknowledges that the following persons are the only representatives authorized by Olds College to give instructions and directions to the Contractor and to receive confidential advice and information from the Contractor:

Vice President, _____:	_____ (name)
Director, _____:	_____ (name)

Incidental Goods (if applicable)

8. Without limitation to section 4(a), and exceptions listed in Schedule "A", the supply of Services under this Agreement shall be deemed to include all goods and supplies utilized, or reasonably required to be utilized by the Contractor.

Disclosures

9. The Contractor shall fully and promptly disclose to Olds College all conflicts of interest and all other information in the knowledge of the Contractor, whether presently known or acquired afterwards, that could reasonably be expected to influence Olds College's decision to follow, rely upon, abide by or implement the Contractor's advice or decisions.

Honest Dealing and Good Faith

10. The Contractor represents and agrees that:
 - a. all statements and representations of fact made by the Contractor in, or during the course of any business communications, including Proposals from the Contractor, if applicable, resulting in this Agreement, are true and accurate,
 - b. all opinions expressed by the Contractor were genuinely held, and
 - c. there were no omissions, misstatements or understatements of any material facts or matters which if known to Olds College might reasonably be expected to have materially influenced the decision of Olds College to enter into this Agreement,
 - d. it owes a duty of good faith to Olds College.

Contractor's Staff and Resources

11. The Contractor agrees that Contractor employees shall perform the entirety of its Services and shall only use such other agents, employees, advisors, sub-contractors and other personnel as are pre-approved in writing by Olds College.

Contractor - No Authority for Olds College

12. The Contractor has no decision making responsibility or managerial or executive authority over or in respect of Olds College's affairs whatsoever.
 - a. The Contractor shall not expressly or impliedly hold out to any person that the Contractor has any authority whatsoever to make decisions on Olds College's behalf.

Mutual Termination Notice

13. Either party may terminate this Agreement at any time upon the provision of 30 days notice to the other party.

Immediate Termination

14. The College may immediately terminate this Agreement, without prejudice to any other right or remedy the College may have, if:
 - a. the Contractor commits an act of bankruptcy or is adjudged bankrupt or makes a general assignment for the benefit of creditors, acting reasonably, by giving notice of such termination to the Contractor or to the Contractor's receiver or trustee in bankruptcy, or
 - b. if a receiver is appointed over all or a material portion of the business and assets of the Contractor, or,
 - c. if the Contractor has abandoned performance of the Services or,
 - d. has made an assignment of this Agreement without the prior written consent of the College, or
 - e. if the Contractor commits a material breach of this Agreement, as determined by the College, or
 - f. if the Contractor fails to perform any portion of the Services in accordance with this Agreement or,

- g. is otherwise in breach of this Agreement.

Insurance

15. Unless waived in writing by College, the Contractor shall at its own cost, obtain and maintain in full force and effect for the Term of this Agreement, general liability insurance in a form satisfactory to Olds College in the minimum amount of \$5,000,000 per occurrence or such greater or lesser amount as Olds College may require or permit.
- a. Upon request from Olds College, the Contractor shall provide a certified copy of the insurance policy to Olds College.

Notice

16. Any notice required or permitted to be given in this Agreement shall be valid if served, mailed or electronically mailed to the respective addresses set out below:

Olds College representative:

Contractor:

Notice served by prepaid registered mail upon either party to such addresses shall be deemed received five clear business days after posting. Notice served by any other means shall be effective upon actual receipt. Either party may change its address for service upon notice to the other.

Quality of Services

17. The Contractor represents and covenants to and with Olds College that:
- the Contractor and its employees and permitted sub-contractors have all equipment, expertise, knowledge and training required to perform the Services skillfully, competently, safely and without danger to themselves or to others;
 - the Contractor and its employees and permitted sub-contractors shall perform the Services skillfully, competently, safely and without danger to any persons or property whatsoever;
 - the Contractor and its employees and permitted sub-contractors shall honestly and diligently perform the Services in good faith with a view to the best and exclusive interests of Olds College and at all times exercise the professionalism, care, diligence and skill that a reasonably prudent person would exercise in comparable circumstances;
 - the Contractor shall hire, train, maintain, utilize and properly supervise sufficient, qualified and competent personnel to carry out its duties hereunder;
 - the Contractor shall obtain, comply with and satisfy all such licensing, approvals, consents and legislative and regulatory approvals as may be required by any governmental or other authority having jurisdiction over the Contractor's operations;
 - when so directed by Olds College, and except as otherwise stipulated in this Agreement, the Contractor shall only use equipment, goods or products which have been approved by Olds College, such approval not to be unreasonably withheld provided however that it is understood and agreed that nothing herein shall absolve the Contractor from

- making prudent selections of such equipment, goods or products and from giving Olds College prudent advice with respect to Olds College's approval of the same; and
- g. if and to the extent required and applicable, all goods and products to be provided or delivered hereunder shall contain, and shall contain unrestricted licenses to Olds College to use, all software and other intellectual property required for the normal and lawful operation of any such goods and products in accordance with the requirements hereunder.

Standards

18. The Contractor agrees that it shall at all times:
 - a. keep and maintain its equipment, vehicles and personnel in a clean, safe, and tidy condition and generally in such condition as shall meet the reasonable requirements and directions of Olds College as established from time to time,
 - b. if the Contractor or its employees or contractors come into contact with any College Persons, deal with such persons in a reputable, honest, courteous, non-offensive, fair and businesslike fashion and shall, as applicable, honour all commitments, verbal or otherwise, if any, made by them to such College Persons,
 - c. provide the Services in accordance with high industry standards as to quality with the intent that the Services will meet or exceed all reasonable requirements of Olds College (and its College Persons, as applicable) on an efficient and competitive basis,
 - d. use its best efforts to achieve the reasonable performance standards established from time to time by Olds College (after consultation the Contractor); disclose conflicts of interest as required under, and generally to abide by, Olds College's conflict of interest policies as in effect from time to time, and
 - e. generally conduct itself in such a fashion as to positively promote and preserve a reputation associated with Olds College consistent with reputability, high ethics, competence, good quality, and integrity,
 - f. allow a performance review by Olds College periodically, to ascertain whether the Contractor is complying with performance standards and the Contractor shall, if such performance review is not satisfactory to Olds College, use its best efforts to immediately improve its performance to the standard required.

Comply with Laws

19. Without limitation to the foregoing, the Contractor shall at all times comply with all federal, provincial and municipal laws.
 - a. The Contractor shall also comply with all rules and regulations of any duly constituted authority, affecting or in any way relating to the Contractor's business and activities, including without limitation, laws and regulations pertaining to licensing, public health, human rights, fire safety, employment practices and occupational health and safety.

Deficiencies

20. Any deficiencies in the Services shall be rectified promptly and entirely at the Contractor's expense.

Goods Supplied – (if applicable)

21. The Contractor represents and warrants to Olds College that all goods supplied in the provision of the Services (if any):

- a. shall be free of defects, shall be of good and merchantable quality and shall be fit for the purpose intended,
- b. shall, as required, be supplied to Olds College with complete and accurate instructions pertaining to use and safety,
- c. when properly used (and in accordance with any instructions provided), shall be safe and shall not present a danger to any persons or property,
- d. where applicable, have been approved for use in Canada by the Canadian Standards Association and by any other authority having jurisdiction,
- e. shall, as applicable, be transferred to Olds College free and clear of all charges and encumbrances, and
- f. that their sale, resale, use, lease or distribution to Olds College under this Agreement otherwise complies with all applicable laws and regulations throughout Canada and does not offend the patent or proprietary rights of any person.

Use of Olds College Assets

22. If and to the extent that the provision of the Services requires the occupation, possession or other use of Olds College's premises, equipment or other assets, the Contractor shall not occupy, possess or make use of the same except as expressly permitted by Olds College under this Agreement and in any event for no purpose other than the provision of the Services.
 - a. Without limitation to the foregoing, the Contractor shall not suffer or permit the same to be used for any unlawful purpose or activity or suffer or permit any lien or encumbrance to be made against the same.
 - b. Without limitation to section 25 of this Agreement, the Contractor shall fully indemnify and save harmless Olds College and other College Persons from and against any and all claims, loss or damage of, against or to such property during, or in the course of, such occupation, possession or use, however caused (other than through the negligence of Olds College itself).

Supply Shortages

23. Subject to any contrary commitments agreed to by the Contractor prior to the date of this Agreement, and previously disclosed to Olds College in writing, in the event of a shortage of labour or other supplies or other circumstance which prevents the Contractor from satisfying requests for services from all of its customers within the times requested, the Contractor shall prefer Olds College and, in particular, shall fully supply Olds College with its requirements before supplying other customers.

Non-Exclusive Service

24. The Contractor is entitled to provide services to other parties provided that the provision of such other services does not, in Olds College's opinion, conflict with the Contractor's obligations to Olds College under this Agreement, and does not in any other manner adversely impact upon the quality, quantity or timeliness of the Services to be provided to Olds College, and provided further that, in the event of conflict, Olds College's requirements are given first priority.

Hours and Location of Service

25. The Contractor may perform its Services during such reasonable hours and work from such locations as are sufficient to adequately meet its obligations, unless otherwise stipulated in this

Agreement.

- a. The Contractor shall be responsible for providing its own overhead, office space, equipment, vehicles, staffing and materials as may be necessary for the performance of its Services under this Agreement, without further charge or fee to Olds College and no additional fees or reimbursements shall, without prior express arrangement of Olds College, be payable.
- b. In the event that Olds College shall permit the Contractor to make use of Olds College's own facilities from time to time, it is understood and agreed that such permission is at all times revocable at Olds College's discretion.

Contractor - Independent Contractor

26. The Contractor is an independent contractor and is not a partner, legal representative, employee or agent of Olds College for any purpose whatsoever.
 - a. The Contractor shall have no authority to, and agrees that it will not make, any warranties or representations, enter into any contracts, assume or create any obligations, or make any commitment or commitments, on behalf of Olds College without the prior express written consent of Olds College.
 - b. In the event that any third party, including any governmental authority, shall allege that the Contractor or any of its sub-contractors, agents or employees are employees of Olds College, or that Olds College is vicariously liable for the actions of the Contractor or any of its sub-contractors, agents or employees, the Contractor agrees to fully indemnify and save harmless Olds College from and against any and all costs and expenses, including solicitor client costs, in defending against such allegation and from and against any and all judgments, assessments, reassessments, fines, penalties and other claims levied or obtained against Olds College in consequence of such allegations.

Release

27. Olds College shall not be liable for any death, injury or damage to the persons or property of the Contractor or of its officers, employees, agents or contractors, except where such damage, loss or injury has resulted from the proven gross negligence of Olds College, its agents, or employees.
 - a. Without limitation to the foregoing, Olds College shall not in any event be liable to the Contractor for any consequential damages or third party liabilities.
 - b. In any and all events, no facts, acts, omissions, circumstances or states of affair (collectively "Actionable Occurrences") shall be alleged or claimed upon in, or as the basis for, any action or counterclaim in tort (including negligence), breach of contract or any other cause as against Olds College or, without Olds College's written consent, as against any other College Person unless, and except only to the extent that, the Contractor has notified Olds College of such Actionable Occurrences and the intention to claim upon them, in writing no more than 180 days after the date of such Actionable Occurrence (even if the same are not discovered or discoverable until after the expiration of such time and even if Olds College otherwise had actual and previous knowledge of the same) and the Contractor hereby releases Olds College from any claims arising from Actionable Occurrences not so notified to Olds College within such time.

Employees

28. The Contractor shall hire or provide from its employees such managers, supervisors and workers as are required to perform the Services and shall be solely responsible for, and shall pay when due, all wages, benefits, safety programs, Workers' Compensation, source deductions and payroll administration associated with such employees and, without limitation shall be responsible for the supervision, selection, training and dismissal (with proper notice or payment in lieu) of any and all such employees.

Intellectual Property

29. The Contractor acknowledges and agrees that it shall not acquire any rights to any good will, trade-mark, copyright or other form of intellectual property owned by Olds College.
- a. The Contractor shall not use the trademarks or logos of Olds College in any manner except that the Contractor may identify itself as the independent contractor of Olds College in a form and manner permitted in writing from time to time by Olds College.
 - b. All Developed Products are and shall be the property of Olds College (and are assigned to Olds College) and all moral rights in the same are waived by the Contractor.
 - c. Upon the completion of the Services, the Contractor shall deliver to Olds College any and all of the drawings, specifications, models, source codes and copies of or relating to the Developed Product in whatever form they may be found to exist whether they are printed, electronically stored, or exist in any other form whatsoever.

Confidentiality

30. The Contractor and each of its employees and sub-contractors shall keep all sensitive information strictly confidential and shall not disclose or release such information or any portion of it, to any person whatsoever, except to Olds College and except as may be required at law.
- a. Without limitation to the foregoing, the Contractor shall, if requested by Olds College, execute and deliver Olds College's standard vendor confidentiality Agreement including any variations, if any, as Olds College reasonably determines are advisable having regard to the nature of the Services.
 - b. The Contractor further agrees as follows, in the event that:
 - i. inadvertently or otherwise, the Contractor obtains or gains access to any sensitive information that was not required for the performance of this Agreement,
 - ii. sensitive information in any form that the Contractor once had in its possession or control is lost, or stolen or is otherwise acquired by a third party without the consent of Olds College, or
 - iii. the Contractor has reasonable cause to believe that trespassers, hackers or any other third party has, by theft, through electronic means or otherwise, gained access to sensitive information without the consent of Olds College, then the Contractor shall promptly so advise Olds College and, if requested, provide a written report concerning such incident in such detail as Olds College shall reasonably require.
 - c. In regards to the Services, where Olds College deems it practical and appropriate, the Contractor may be required to, and in such event shall, promptly advise Olds College in writing of each occasion that the Contractor accesses Olds College's electronic files, records or systems outside of normal business hours or from any off site location and shall not in any event do so without prior authorization.
 - d. Sensitive Information shall not in any form or by any means, electronically or otherwise,

be removed from Olds College's premises without its express consent.

- e. Upon request of Olds College, or in any event, upon termination or expiry of this Agreement, the Contractor shall promptly return to Olds College any and all Sensitive Information and any and all copies, abstracts, summaries or derivations thereof, and in whatever form, written, electronic or otherwise that are in the Contractor's possession or control.
- f. **The Contractor's obligations of confidentiality as they pertain to Sensitive Information continue after termination of this Agreement.**

Enforcement/Injunctions

- 31. The Contractor agrees that in the event that the Contractor contravenes this Agreement or any portion of it, or engages in any activity which, on the face of it, contravenes this Agreement (including, without limitation, sections 14 or 20) the Contractor acknowledges and agrees that damages alone would be an insufficient remedy and that interim and permanent injunctions would (without limitation to any claim for damages) be an appropriate remedy.
 - a. The Contractor further agrees that if Olds College seeks such an injunction, whether on an interim basis or otherwise the Contractor will waive any entitlement to require an undertaking as to damages and releases Olds College from any damages resulting from such injunction.

Incident Reporting

- 32. In performing the Services, the Contractor shall immediately report to Olds College, by phone, any breach of this Agreement or any occurrence or situation that is or has been harmful or could be potentially harmful to any person or property, or that may delay the completion or that may impair the quality of any of the Services.
 - a. Following immediate phone notification, the Contractor shall promptly complete and submit to Olds College written reports that may be reasonably requested by Olds College or its insurer relating to same.

Risk – Goods Only (if applicable)

- 33. All goods supplied by the Contractor under the terms of this Agreement shall be entirely at the risk of the Contractor until such time as possession of such goods has been delivered over to Olds College.
 - a. Where the goods of Olds College or of any other Person come into the possession of the Contractor during the performance of this Agreement, all such goods shall be entirely at the risk of the Contractor from the time the Contractor takes possession of the same to the time that possession of such goods has been delivered over to Olds College or such College Person, as the case may be.
 - b. The Contractor shall hold Olds College and other College Persons harmless from and against any claims arising out of the damage to the same, however caused, unless such losses have been proven to be caused by the negligence of Olds College or such College Persons.

Security

- 34. The Contractor acknowledges that Olds College is in a uniquely vulnerable and sensitive position in respect of any actual or perceived risk of harm to the person or property of Olds College or

any of its employees or students.

- a. Consequently the Contractor agrees that where Olds College in its unfettered discretion determines that any employee, sub-contractor or other representative of the Contractor in performing any of the Contractor's duties under this Agreement, has engaged in (or, with or without definitive proof, has been perceived to have been engaged in or at risk of engaging in) practices or behaviours deemed offensive by Olds College including, without limitation:
 - i. practices involving harassment,
 - ii. bullying,
 - iii. the issuance of verbal or implied threats,
 - iv. the violation of laws or regulations or acts of dishonesty,
 - v. or any other act deemed offensive,such employee, contractor or other representative will be replaced by the Contractor at the request of Olds College.
- b. In any request to replace any such employee, contractor or representative it shall not be necessary for Olds College to give any cause or explanation for its request.

Indemnity

35. The Contractor shall indemnify and save harmless Olds College and other College Persons from and against any and all direct and consequential losses, expenses (including legal expenses on a solicitor and client basis) and claims (including claims brought by third parties) suffered, brought or incurred as a result of:
 - a. any breach by the Contractor of this Agreement,
 - b. any deficiencies in the Services,
 - c. any harm or loss of or to the property of Olds College or of others as a result of, or arising out of, performing the Services;
 - d. any debt, charge or liability owed by the Contractor to a third party, including any governmental agency or other third party; or
 - e. the negligence or any other wrongful act of or by the Contractor or any assignee, agent, contractor, or employee of the Contractor.

Continuing Obligations

36. Any reference in this Agreement to termination whether by expiry or termination, shall be read as preserving all rights, obligations and liabilities existing, arising, accrued or accruing at or prior to the time of such expiry or termination.
 - a. Without restricting the generality of the foregoing, sections 5, 14, 16, 19, 20, 25 and 29 of this Agreement, shall survive its termination or expiry.

Assignment/Sub-contractors

37. The Contractor may not assign this Agreement without the express written consent of Olds College which said consent may be arbitrarily withheld. Except as may be otherwise expressed in the Agreement, sub-contractors may not be used in the provision of Services without Olds College's prior written consent.

Non-Waiver

38. Any waiver by Olds College of any default or breach by the Contractor shall not operate as or in any way constitute a waiver or condonation of any subsequent default or breach under this

Agreement.

Holdover

39. In the event that the Contractor continues to provide Services after the expiry of the original Term of the Agreement or acquiescence of Olds College, the terms and conditions of this Agreement shall continue to apply to such goods and Services except that, unless and until Olds College expressly agrees otherwise in writing, there shall be no implied extension of the said Term. Any of Olds College's obligations under this Agreement shall be terminable at will and without prior notice.

Force Majeure

40. Neither party is liable for any loss, detention, default, damage or delay in fulfilling the obligations under this Agreement caused by or resulting from conditions or causes beyond its reasonable control, including, but not limited to, any act of God, fire, flood, acts of any government authority, enemy or hostile actions, sabotage, war, blockades, insurrections, riots, epidemics, washouts, nuclear and radiation activity or fallout, civil disturbances, explosions, or other casualty ("Force Majeure").
- a. Olds College may terminate this Agreement, without liability or waiver of breaches by the Contractor unrelated to the Force Majeure, if such Force Majeure continues for longer than 30 days.

Funding Changes

41. The Contractor acknowledges that Olds College is a publicly funded institution reliant upon the funding policies and procedures of governments.
- a. The Contractor agrees that Olds College shall be at liberty to terminate this Agreement upon a minimum of 60 days' notice to the Contractor if:
- i. due to any change in legislation, regulations, grants, funding amounts, funding policies, expenditure directives or restrictions, or other occurrence of a legal or financial nature beyond the control of Olds College, that in the reasonable opinion of Olds College make the continuation of this Agreement on the pricing or terms of this Agreement unlawful, economically unfeasible or otherwise inadvisable or imprudent.

Freedom of Information and Protection of Privacy Act

42. The Contractor agrees that, in adherence to the *Freedom of Information and Protection of Privacy Act* ("FOIP Act"), the Contractor is required to comply with the provisions of the FOIP Act pertaining to all information and records relating to, obtained, created, generated, collected, or provided under or pursuant to this Agreement.
- a. The Contractor acknowledges that Olds College is subject to the requirements of the FOIP Act and that all information and records pertaining to this Agreement will be maintained in confidence or disclosed by Olds College in accordance with the FOIP Act.
- b. The Contractor agrees to fully cooperate with Olds College in any manner that Olds College requires for the purpose of assisting Olds College to meet its obligations under the FOIP Act or other law or legislation with respect to the records within the Contractor's custody or control.
- c. Notwithstanding anything else in this Agreement, the Contractor shall fully indemnify and save Olds College harmless from any loss, damages, or costs (including solicitor and

his own client costs) arising from the actions of, or failure to act on the part of the Contractor, or its employees, agents, or subcontractors, with respect to the requirements of this section.

Amendments

43. Both parties agree that the terms and conditions of this Agreement may only be amended, waived or varied by Agreement in writing, and executed by all parties to this Agreement.

Governing Law

44. The laws of the Province of Alberta shall govern and apply to this Agreement and to any acts or occurrences happening in or as a result of the performance of this Agreement. Each party attorns to the jurisdiction of the courts of the Province of Alberta.

Schedules

45. Schedules form an integral part of this Agreement, including the Schedules attached to this Agreement, Schedule A - Description of Services and Fees.
- a. All representations, warranties and covenants given in the main body of this Agreement are in addition to and not in replacement of the provisions of the Schedules.

Interpretation of Agreement

46. Any obligation of the Contractor in this Agreement shall be read so as to extend to every employee, officer and contractor of the Contractor, whether expressly stated or not, so that any act of such employees, officers or contractors shall, for the purposes of this Agreement, be deemed to be an act of the Contractor.
- a. Nothing in this Agreement lessens Olds College's rights and entitlements under common law. If any section of this Agreement, or portion of a section is unenforceable for any reason (including uncertainty) then such provision may at Olds College's option be severed and the rest of this Agreement shall be of full force and effect.
 - b. Generally, but without limitation to the foregoing, any portion or portions of such section or portion, may be deleted by Olds College at any time if so doing is required to preserve the enforceability of the remainder of such paragraph, sentence, clause or portion.
47. The headings used in this Agreement are for convenience only and shall not be used in interpretation.
48. This Agreement shall be interpreted in the manner most beneficial to the interests of Olds College.
49. This Agreement contains the entirety of any representations, warranties or covenants by or on behalf of Olds College pertaining to the subject matter.
50. The individual sections in this Agreement and its Schedules shall be construed independently and, whether expressly so stated or not, the interpretation of one section shall not limit any of the rights and protections given Olds College under any other section.

51. As regards all of the Contractor's obligations, time is of the essence.
52. This Agreement shall be binding upon and ensure to the benefit of Olds College and the Contractor and their respective heirs, executors and permitted assigns.

IN WITNESS WHEREOF the parties hereto have executed this Agreement effective the date first above written.

OLDS COLLEGE

Per: _____

Address for Notice:
4500-50th Street,
Olds Alberta, T4H 1R6

CONTRACTOR:

Per: _____

Address for Notice:

Schedule “A”

Description of Services & Fees

To be completed after the Agreement has been awarded to the successful Proponent, based on the proposed services and goods in their Proposal.